



Appeal Decision

Site visit made on 25 August 2026

by Nick Davies BSc(Hons) BTP MRTPI

an Inspector appointed by the Secretary of State

Decision date: 10th September 2026

Appeal Ref: 6007431

Land east of Lower Clicker Close, Clicker, Menheniot, Liskeard, Cornwall

PL14 3UF

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant permission in principle.
 - The appeal is made by Mrs J Ward against the decision of Cornwall Council.
 - The application Ref is PA25/07800.
 - The development proposed is the erection of up to one dwelling.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. The proposal is for permission in principle. The Planning Practice Guidance (the PPG) advises that this is an alternative way of obtaining planning permission for housing-led development. The permission in principle consent route has two stages: the first stage (or permission in principle stage) establishes whether a site is suitable in-principle, and the second (technical details consent stage), is when the detailed development proposals are assessed. This appeal relates to the first of these two stages.
3. The scope of the considerations for permission in principle is limited to location, land use and the amount of development permitted¹. All other matters are considered as part of a subsequent technical details consent application if permission in principle is granted. I have determined the appeal accordingly.
4. An applicant can apply for permission in principle for a range of dwellings by expressing a minimum and maximum number of dwellings as part of the application. In this instance, permission has been sought for a minimum of one and a maximum of one dwelling.
5. An indicative proposed block plan has been submitted, showing how a dwelling could be located on the site and a potential means of access. I have considered this plan to be solely for illustrative purposes because the application only relates to the principle of the proposed development.
6. The site lies in close proximity to the Plymouth Sound and Estuaries Special Area of Conservation (the SAC) and the Tamar Estuaries Complex Special Protection Area (the SPA). The Cornwall Council European Sites Mitigation Supplementary Planning Document (July 2021) (the SPD) explains the importance of the SAC and

¹ The PPG Paragraph: 012 Reference ID: 58-012-20180615

the SPA and their qualifying features. It identifies that recreational activity, resulting from additional residential development nearby, has the potential to disturb the habitats, resulting in a likely significant effect on their qualifying features. The SPD provides a strategic scheme, and sets out a series of measures, to mitigate the effect of this increased recreational pressure. For small developments, this involves securing a financial contribution to the strategic mitigation plan through each application.

7. The PPG explains that conditions and/or planning obligations cannot be secured at the permission in principle stage, only at the technical details consent stage. However, in this case, the evidence indicates that a S111 Agreement has been completed and the requisite payment has already been made, so the mitigation requirements in the SPD have been secured. Any application for technical details consent must specify the permission in principle to which the technical details consent relates. There is, therefore, a direct link between the mitigation payment, related to the permission in principle stage for this scheme, and the process of submitting and considering any subsequent technical details, including its effects on the SPA and the SAC.
8. Natural England has endorsed the measures proposed in the SPD and, in view of the payment, the Council is satisfied that the effect of the development on the SPA and the SAC has been addressed. In these circumstances, I am satisfied that the proposal, either alone or in combination with other schemes, would have no adverse effect on the integrity of the SPA or the SAC. Consequently, when undertaking an appropriate assessment, I am satisfied that the scheme would accord with the requirements of the Conservation of Habitats and Species Regulations 2017. The proposal would not, therefore, be habitats development, so can be considered under the permission in principle application procedure.
9. On 17 August 2026, the Government published a new National Planning Policy Framework (the Framework). Both parties have had the opportunity to comment on its implications for their respective cases. I have considered the new Framework in my determination of the appeal.

Main Issue

10. The main issue is whether the site is suitable for a dwelling, having regard to its location, the proposed land use, and the amount of development.

Reasons

11. Policy 2 of the Cornwall Local Plan Strategic Policies 2010 – 2030 (adopted 2016) (the Local Plan) sets out the spatial strategy for development. It seeks to maintain the dispersed development pattern of Cornwall, providing homes and jobs based on the role and function of each place. Based on this strategy, Policy 3 defines how development will be accommodated, with growth focussed on identified main towns. Clicker is not one of these. However, the strategy also supports housing growth within or adjoining smaller settlements through the identification of sites through Neighbourhood Plans; rural exception sites; infill schemes that fill a small gap in an otherwise continuous built frontage; development of previously developed land (PDL); or rounding off.
12. Paragraph 1.68 of the Local Plan explains that Neighbourhood Plans can provide detailed definition on which settlements are appropriate for infill, and boundaries

within which the policy will operate. The Menheniot Parish Neighbourhood Development Plan 2021-2030 (the Neighbourhood Plan) establishes a Development Boundary for Clicker, within which Policy 1 supports infill development and development of previously developed land (PDL). The appeal site lies outside the boundary, where Policy 1 says development will not be supported unless it accords with Policies 7 or 9 of the Local Plan, or Policy 5 of the Neighbourhood Plan. The proposal has not been submitted as a rural exception site, so it is not supported by Local Plan Policy 9 or Neighbourhood Plan Policy 5. I will return to Policy 7 below.

13. The site's location is not within a built frontage, so the proposal would not constitute infill development as described by paragraph 1.65 of the Local Plan. The appeal site is primarily a grass field, and it is not occupied by any permanent structures. I acknowledge, however, that there is an area of hard surfacing in the southwestern corner of the site. The definition of PDL in the Glossary to the Framework includes large areas of hardstanding, but in this case the area covered is a relatively small proportion of the overall site. I am not therefore persuaded on the evidence that the site comprises PDL. The proposal is not, therefore supported by this arm of Policy 3, or by Policy 21 of the Local Plan.
14. Paragraph 1.68 of the Local Plan describes rounding off as development on land that is substantially enclosed, but outside the urban form of the settlement, and where its edge is clearly defined by a physical feature that also acts as a barrier to further growth. It also says that it should not visually extend building into the open countryside. The western boundary of the site comprises a row of trees that separates the field from the houses in Lower Clicker Close. However, there is only a post and rail fence to the southern boundary, and the northern part of the site is largely open to the pub car park beyond. Furthermore, the eastern boundary of the site is an arbitrary line across the middle of the field, which is not marked by any feature on the ground. Consequently, the site is largely open, without distinct boundaries to segregate it from the surrounding countryside.
15. Visually, therefore, rather than providing symmetry to the urban edge, a dwelling on the site would appear as an extension of development into the countryside, beyond the established built form of the settlement. The lack of any substantial boundary features would also create the potential for further incremental growth to the south and east. Therefore, the site's location means that the proposed development would not meet the description of rounding off. Consequently, the proposal would not fall within any of the types of development that are supported by Policy 3 of the Local Plan within or adjoining smaller settlements.
16. Paragraph 2.33 of the Local Plan defines open countryside as the area outside of the physical boundaries of existing settlements. Whilst the site is adjacent to Clicker, it does not lie within its physical boundaries, so is in the open countryside for planning purposes. Policy 7 of the Local Plan says that development of new homes in the countryside will only be permitted where there are specified exceptional circumstances. None of these apply to the proposal, so it would be contrary to Policy 7. Consequently, the location and land-use proposed would conflict with the spatial strategy set out in Policies 2, 3, 7 and 21 of the Local Plan. Its location outside the Development Boundary would also result in conflict with Policy 1 of the Neighbourhood Plan.

Planning Balance

17. The proposal would conflict with the spatial strategy of the Local Plan and with Policy 1 of the Neighbourhood Plan, which addresses development outside the Development Boundary. The proposal would, therefore, conflict with the development plan as a whole. The legislation² requires that applications for planning permission be determined in accordance with the development plan unless material considerations indicate otherwise.
18. It is not disputed that the Council cannot currently demonstrate a five-year supply of deliverable housing sites. The most recent evidence indicates that the supply is 3.9 years, so the shortfall is considerable. As the location of the site is well-related to the settlement, and a single dwelling would be appropriate in scale, the Framework's approach to determining proposals for development outside settlements, as set out at Policy S5 1.j, is a material consideration of critical importance. In accordance with this Policy, the proposal should be approved, unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in the Framework.
19. In terms of benefits, the development would support the Framework's objective of delivering a substantial increase in the supply of homes. In view of the current evidenced unmet need for housing in the Local Plan area, Policy HO7 of the Framework requires that substantial weight should be given to this benefit. There would also be economic benefits associated with the development, through the creation of jobs during the construction phase, and residents thereafter contributing to the local economy through ongoing spending and support for local services. The scale of the development means that these benefits carry modest weight.
20. In terms of adverse effects, Paragraph 2 of Annex A of the Framework says that development plan policies should not be given reduced weight simply because they were adopted prior to publication of the Framework. The spatial strategy set out in Policies 2, 3, 7 and 21 of the Local Plan is consistent with the Framework's aims to direct development to the most appropriate and sustainable locations. However, it is not delivering a sufficient supply of homes across the County in accordance with the other aims of the Framework. Consequently, I can only afford moderate weight to the conflict with the spatial strategy of the Local Plan.
21. Whilst I attach substantial weight to the benefit of delivering an additional dwelling, particularly given the absence of a five-year housing land supply, I must have regard to Policy S6 of the Framework when considering the weight I give to the conflict with Policy 1 of the Neighbourhood Plan. Policy S6 of the Framework advises that the benefits of approving development are likely to be substantially outweighed by the adverse effects where a proposal would conflict with a neighbourhood plan that has been made within the last five years, and which contains allocations to meet its identified housing requirement.
22. The Neighbourhood Plan was made in April 2022, and it contains a considered rationale setting out its identified housing requirement. At the time of preparation of the Plan, the need was for about five open market and 19 affordable dwellings. Allocations of land were made to provide about 20 houses, with a further allocation

² Section 38(6) of the Planning and Compulsory Purchase Act 2004 and section 70(2) of the Town and Country Planning Act 1990.

of land for a housing facility for the care of elderly people. The need for affordable housing was expected to be met through a Policy supporting rural exception sites. Additionally, a site for about 275 houses was identified to meet the housing needs of the Liskeard and Looe Community Network Area (CNA). Whilst the appellant has contested the basis for the Neighbourhood Plan's identified housing need, the Plan was independently examined and found to be in general conformity with the strategic policies of the Local Plan.

23. I am mindful that the allocations have not yet come forward, but there is no evidence before me to demonstrate that they cannot be delivered. My attention is also drawn to a planning permission that has been granted for commercial development on the site allocated to meet the needs of the Liskeard and Looe CNA. However, I note that this permission only covers part of the site. There is no evidence to indicate that housing cannot be provided on the remainder. Consequently, there is no reason for me to conclude that the Neighbourhood Plan does not continue to make provision for the local housing requirement that was identified at the time it was made, less than five years ago. I therefore give substantial weight to the conflict with Policy 1 of the Neighbourhood Plan.
24. Overall, I conclude that when assessed against the national decision-making policies in the Framework, and having particular regard to Policy S6, the adverse impacts of the proposal significantly and demonstrably outweigh the benefits. Therefore, there are no material considerations to indicate that a decision should be made contrary to the provisions of the development plan.
25. In arriving at my decision, I have had regard to the appeal decision³ that has been drawn to my attention by the appellant. In that case the Neighbourhood Plan supported development outside the development boundary where it complied with Policy 3 of the Local Plan. The Inspector concluded that the proposal constituted rounding off in accordance with Policy 3, so there was no conflict with the Neighbourhood Plan. The decision is not, therefore, comparable with the case before me, where I have found that the proposal does not comply with Policy 3. Consequently, it does not lead me to a different conclusion.

Conclusion

26. For the reasons given above, I conclude that the appeal should be dismissed.

Nick Davies

INSPECTOR

³ Appeal Decision APP/D0840/W/25/3360691